NATIONAL FRAMEWORK ON ECO LABELLING IN SRI LANKA

ENVIRONMENT PLANNING AND ECONOMICS DIVISION

MINISTRY OF ENVIRONMENT

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ABBREVIATIONS

CAA	Consumer Affairs Authority
CCC	Ceylon Chamber of Commerce
CEA	Central Environment Authority
EDB	Export Development Board
IDB	Industry Development Board
ISB	Industry Service Bureau
ISO	International Organization for Standards
LCA	Life Cycle Analysis
MoE	Ministry in charge of the subject of Environment
MoTc	Ministry in charge of the subjects of Technology
MoI	Ministry in charge of the subject of Industry
MoT	Ministry in charge of the subject of Trade
NGOs	Non-Governmental Organizations
NIPO	National Intellectual Property Office
SLAB	Sri Lanka Accreditation Board
SLSEA	Sri Lanka Sustainable Energy Authority
SLSI	Sri Lanka Standard Institution
SCP	Sustainable Consumption and Production

NATIONAL FRAMEWORK FOR ECO LABELLING IN SRI LANKA

1.0 Introduction

Eco Labelling schemes contribute globally to transform consumption and production patterns into sustainable. It supports delinking economic growth and environmental degradation which is the ultimate intention of Sustainable Consumption and Production (SCP).

Eco label is a type of environmental labels and one of the tools used widely in promoting ecofriendly products conveying the message to producers and consumers regarding the overall environmental performance of products and services based on life cycle considerations. Eco Labels are advantageous in variety of ways such as providing consumers with more information about the environmental effects of their consumption, encouraging producers, governments and other agents to increase the environmental standards of products/services.

International Organization for Standardization (ISO) has created standards for labelling practices in ISO 14000 series. Three standards are providing the guidance for three types of Eco Labels namely ISO 14024 (Type I), ISO 14021 (Type II) and ISO 14025 (Type III).

The use of Eco Labels in Sri Lanka is not much popular among the local consumers. Available environmental labels and international eco labels are not considerably impact on local consumption and production patterns in comparison to the international trade.

The Ministry of Environment (MoE) has initiated to develop an Eco Labelling Framework in collaboration with the main stakeholders including Sri Lanka Accreditation Board (SLAB), Sri Lanka Standard Institution (SLSI) and then Ministry of Science, Research and Technology.

2.0 Objectives of the Framework

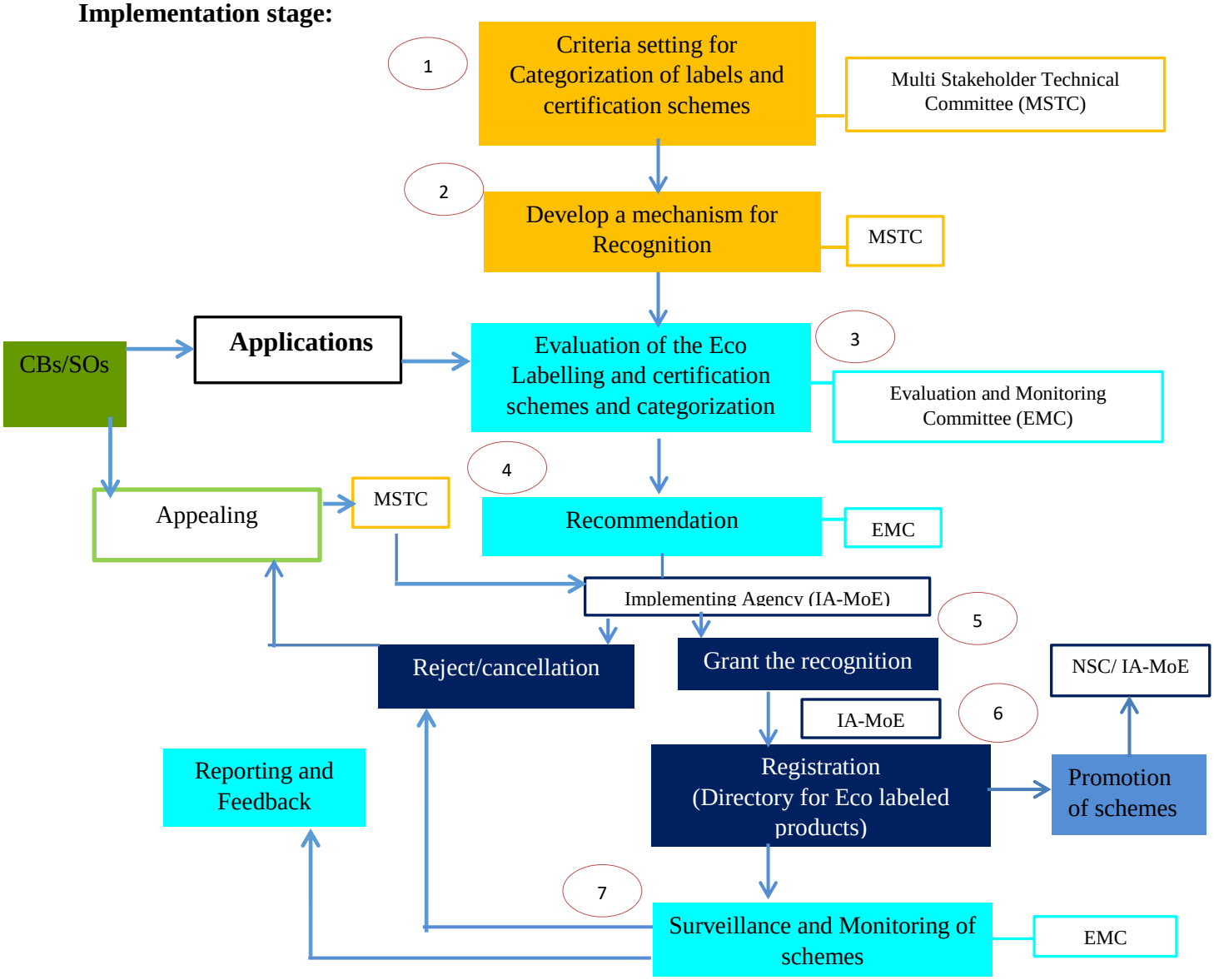
a. To provide comprehensive government support to the Eco Labelling schemes encouraging manufactures to green production and consumers towards responsible consumption pattern.
b. To promote a credible internationally accepted environmental certification and Eco Labelling system and standards in Sri Lanka, encouraging and facilitating green producers to improve environmental product standards.
c. To minimize green washing of the products and services ensuring the production of substantial eco products and services.

3.0 Implementation mechanism of the Framework

Initial stage:

All locally developed (accredited and non- accredited) products and process based environmental claims; international schemes operating locally and schemes under development will be collected with related information and analyzed by the Multi Stakeholder Technical Committee (MSTC) in collaboration with the Implementing Agency (IA-MoE). The scope of the national certification schemes and the boundaries of the categories will be determined through the analysis. A definition for the local Eco Labeling schemes will be developed in consistent with the definitions of international environmental claims. Definition will be developed by the MSTC and approved by the National Steering Committee (NSC).

Implementation stage:



1. **Criteria setting for categorization of labeling and certifications schemes (Framework Criteria):** Criteria will be developed to recognize existing and emerging environmental labelling schemes categorizing them into categories. Criteria will be developed by the MSTC, approved by the NSC and amended/upgraded periodically. Minimization of green washing will be ensured by the criteria.

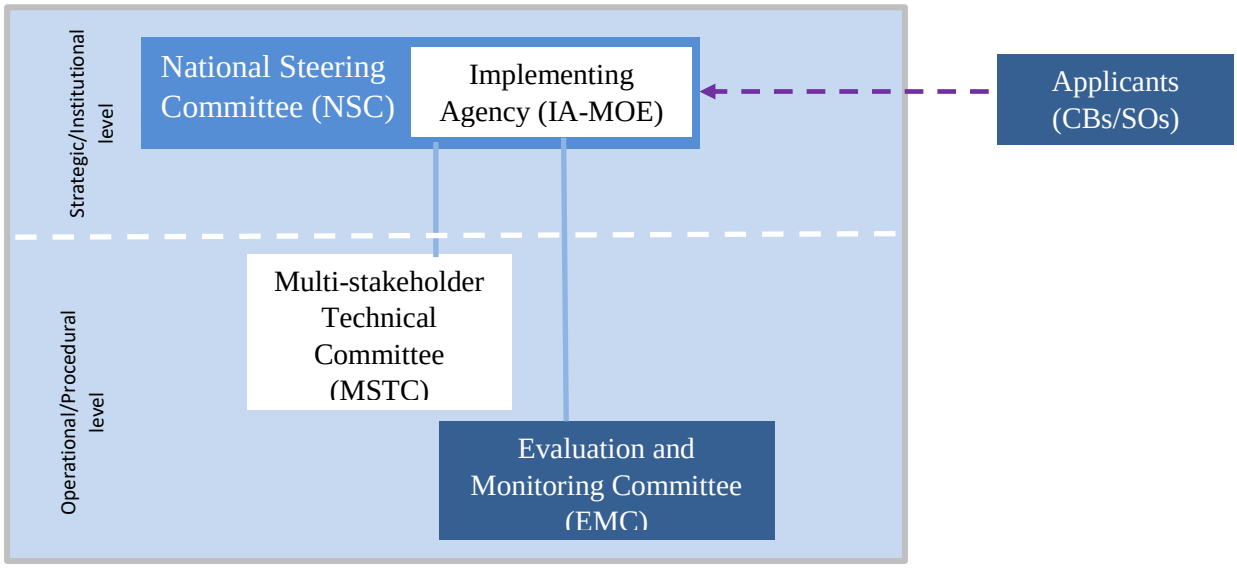
2. **Develop a procedure for Framework recognition:** A mechanism will be developed to recognize the qualified schemes by MSTC.

3. **Evaluation of the Eco Labelling and Certification schemes and categorization:** Based on the above criteria and mechanism for recognition, existing and emerging schemes will be evaluated and categorized. Accredited and non-accredited Certification Bodies (CBs) / Scheme owners (SOs) have to apply for the recognition with necessary information requested by the Framework. Applications of CBs / SOs will be received by the IA-MoE and evaluated by the Evaluation and Monitoring Committee (EMC).

4. **Recommendation:** EMC will recommend the qualified schemes and the relevant category to the IA-MoE.

5. **Grant the recognition:** IA-MoE will grant the recognition for the qualified schemes or reject based on the recommendation of the EMC. If rejects, CBs/SOs can appeal to MSTC for the recognition.
6. **Registration:** Recognized schemes will be registered by the IA-MoE under the Framework. The registered schemes will be promoted through the Directory for eco labelled products, websites and through various channels.
7. **Surveillance and Monitoring of schemes:** Recognized schemes will be monitored by the EMC annually. EMC will produce reports to the IA-MoE with the recommendations and feedback. In case of violation of the requirements by any CB/SO, the EMC will produce their recommendations to the IA-MoE to cancel the recognition.

4.0 Institutional Structure of the Framework



Institutional Structure

1. National Steering Committee (NSC):

NSC is the governing body that consists of senior officials from relevant Ministries (MoTc, MoT, MoI) and institutions.

Role and Functions:

1. Serve as the main governing body for any endeavors or initiatives undertaken.
2. Establish MSTC and the EMC.
3. Select the expertise to any committee or activities of the framework.
4. Overview, steer and monitor the whole process of the Framework.
5. Strengthen the institutions for standardization, testing and accreditation, etc.
6. Facilitate IA-MOE in promoting the schemes and Framework.
7. Resolve any issues of MSTC and EMC in any stage (Initial/implementation) of the Framework
8. Provide guidance for IA-MOE /MSTC for information sharing, capacity building and awareness creation.
9. Provide the support, guidance and oversight of progress.

a. **Implementing Agency (IA-MoE):** MoE will be the Implementing Agency of the Framework and lead the implementation in collaboration with the NSC. It will mainly be responsible for developing and updating criteria of the Framework, registering qualified schemes in the Directory for eco labelled products, promotion of the schemes and Framework, sharing information, capacity building, awareness creation, providing feedback and make recommendations to the NSC to upgrade the Framework when necessary. The Environment Planning and Economics Division will act as the secretariat to the Framework.

b. **Regulatory Agencies:** The existing regulatory institutions such as Consumer Affairs Authority (CAA), Central Environment Authority (CEA), Sri Lanka Sustainable Energy Authority (SLSEA), Export Development Board (EDB), National Intellectual Property Office (NIPO), Sri Lanka Customs, etc will be vested with the regulatory power to hinder the green washing. Also it will strengthen the standardization, make necessary amendments in the regulatory tools in place such as regulations and Acts related to standardization.

c. **Eco Label Experts Forum:** This is a voluntary group of experts, individuals and representatives from the private sector, public sector, Non-Government Organizations (NGOs), Academia, etc representing the fields such as of standards, certification, LCA, ISO, testing, auditing, retailer and consumer organizations. They will meet periodically to discuss the technical matters, positive and negative impacts of the Framework on the respective sectors, create awareness, share experience, make relevant recommendations and suggestions, and support promotion.

2. Multi-stakeholder Technical Committee (MSTC):

Composition: The committee will comprise the mandatory stakeholders including SLSI, SLAB, representatives of NSC, NGOs, academia and field specific stakeholders from public sector, regulatory institutions (CEA, CAA, EDB, SLSEA, NIPO, Sri Lanka Customs, etc), industry consultation organizations (Ceylon Chamber of Commerce (CCC), Industry Development Board (IDB), Industry Service Bureau (ISB) etc) and private sector representatives based on the product categories and services.

The MSTC will be established and monitored by the NSC. It will function as the Technical/working group of the Framework.

Role and Functions:

1. Stock taking of the existing environmental claims and set the criteria for categorization.
2. Develop a local definition for the national eco labelling schemes.
3. Develop criteria and procedures for scheme recognition and appealing.
4. Evaluate the applications of appealed CBs/SOs.
5. Make suggestions and provide feedback to the NSC to upgrade the framework.
6. Recommend the legal and regulatory amendments for the Regulatory Agencies through the NSC.
7. Make decisions on the recommendations made by EMC when necessary (ex: when the qualifications of the schemes are not clear).
8. Make suggestions to amend the Framework criteria periodically.

3. **Evaluation and Monitoring Committee (EMC)**:

Composition: It will be a sub group of impartial experts in MSTC and other qualified experts in the fields. When necessary, temporary participants will be assigned based on the fields to be evaluated.

Role and Functions:

1. Evaluate the applications received from CBs/SOs.
2. Make recommendations to the IA-MoE for categorization and recognition of schemes.
3. Make recommendations for cancellation of schemes which would breach the guidelines.
4. Appoint an Inspection Team when necessary and monitor the registered schemes annually.
5. Report the evaluation to the IA-MoE with feedback and recommendations.
6. Make recommendations to NSC to upgrade Framework and criteria.

The Inspection Team may not be a permanent group and selected impartially case by case by the EMC based on the experience and expertise. Trained, qualified experienced and independent auditors (especially on ISO standards) will be the members of the team. Monitoring of registered schemes annually, producing the reports and recommendations to the EMC on the performances will be the main roles of the team.

5.0 Awareness creation and capacity building: Awareness creation and capacity building is vital in the implementation of the Framework. It could be done in institutional level and Framework level. A mechanism to capacity building and awareness creation will be developed by the IA-MoE with the approval of the NSC. It is needed to create and raise awareness about eco-labeled products through various channels such as social media, newspaper, TV, public procurement, Eco product exhibitions, trade fairs and awards etc.

6.0 Promotion of the Framework: Promotion of the Eco labelling schemes and Framework is essential as the Eco Labels are voluntary initiative and need awareness of producers and customers to keep attracting. There should be a mechanism and plan to promote the Framework and registered schemes. The public and private sector partnership will be beneficial for the promotion. The NSC, Regulatory Agencies and IA-MoE will involve in Framework promotions.

7.0 National Eco Labelling Programme: A National Eco Labelling scheme will be established based on the minimum Framework criteria considering the gaps and needs identified during the implementation.